

DEC 27 1996

DOT-E 8401
(FOURTH REVISION)

EXPIRATION DATE: November 30, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: ERA Helicopters, Incorporated
Anchorage, Alaska
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of fuel contained in UN 1A1 steel drums of not more than 10 gallons each, not to exceed 20 gallon per shipment, loaded in the cargo compartment of passenger-carrying helicopters. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 175.310(d).
5. BASIS: This exemption is based on the application of ERA Helicopters, Incorporated dated September 6, 1996 and supplemental letter dated November 26, 1996, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Fuel, aviation, turbine engine	3	UN1863	III

7. PACKAGING AND SAFETY CONTROL MEASURES: Packaging prescribed is UN 1A1 steel drums having a capacity of 10 gallons each for shipment of fuel not to exceed a total of 20 gallons, in cargo compartments of passenger-carrying helicopters.

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8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. The drums must be carried in an upright position in well ventilated cargo compartments separate from the cabin area.

9. MODES OF TRANSPORTATION AUTHORIZED: Passenger aircraft.10. MODAL REQUIREMENTS: None as a condition of this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

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- Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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